



DECISIONS OF THE QUEENSTOWN LAKES DISTRICT COUNCIL

CHANGE OR CANCELLATION OF CONDITIONS – SECTION 127

NOTIFICATION UNDER s95 AND DETERMINATION UNDER s104

RESOURCE MANAGEMENT ACT 1991

Applicant:	Remarkables Station National Trust Limited and Remarkables Station Limited
RM reference:	RM260466
Application:	Application under section 127 of the Resource Management Act 1991 (RMA) to change Condition 34 (f) of resource consent RM240583 relating to the provision of telecommunications.
Location:	Kingston Road, Wakatipu
Legal Description:	Part Lot 1 and Lot 2 Deposited Plan 26261 held in Computer Freehold Register OT18D/1023
Zoning:	ODP: Rural General Zone PDP: Rural Zone (Remarkables Face A - Significant Natural Area Wāhi Tūpuna)
Activity Status:	Discretionary
Decision Date:	7 May 2026

SUMMARY OF DECISIONS

1. Pursuant to sections 95A-95F of the RMA the application will be processed on a **non-notified** basis given the findings of Section 6 of this report. This decision is made Dr Lee Beattie, Independent Commissioner on 7 May 2026 under delegated authority pursuant to Section 34A of the RMA.
2. Pursuant to Section 104 of the RMA, consent is **GRANTED** for the change to conditions outlined in Section 7 of this decision. An updated set of conditions of RM240583 is provided in Appendix 1 of this decision. This consent can only be implemented if the conditions in Appendix 1 are complied with by the consent holder.
3. To reach the decision to grant consent the application was considered (including the full and complete records available in Council's electronic file and responses to any queries) by Dr Lee Beattie, Independent Commissioner, as delegate for the Council pursuant to Section 34A of the RMA.

1. PROPOSAL AND SITE DESCRIPTION

Consent is sought under section 127 of the RMA to vary condition 34 (f) of subdivision consent RM240583 to allow for alternative telecommunication provision.

The applicant has provided a detailed description of the proposal, the site and locality and the relevant site history in Section 1 of the report entitled 'Lumberbox Quarry, Kingston Road Variation to RM240583', prepared by Karen Page of Clark Fortune McDonald and Associates, and submitted as part of the application (hereon referred to as the applicant's AEE and attached as Appendix 2). This description is considered accurate and is adopted for the purpose of this report.

Upon review of the proposal, it is not considered necessary in this case to trigger Rule 27.5.28 under Chapter 27 (Subdivision & Development) of the Proposed District Plan (PDP). As it is still proposed to provide telecommunication by other means, it is considered to still comply with this rule.

Consideration of a change to the condition of the original resource consent RM240583 is appropriate as the nature of the changes do not fundamentally change the nature and scale of the subdivision assessed and considered under the original consent.

The proposal is to vary condition 34 (f) RM240583 as follows (changes shown in **bold underline** and ~~striketrough~~)

34. *Prior to certification pursuant to section 224(c) of the Resource Management Act 1991, the consent holder shall complete the following:*
- f. *Written confirmation shall be provided from the telecommunications network supplier responsible for the area, that provision of underground telephone services has been made available to the building platform on Lots 1 & 2 and that all the network supplier's requirements for making such means of supply available have been met.*

Or

The consent holder shall provide written evidence of an alternative future telecommunications supply to Lots 1 and 2.

The following condition is also proposed to be added and registered as a consent notice as follows:

35. *The following conditions of the consent shall be complied with in perpetuity and shall be registered on the Titles of Lots 1 & 2 by way of Consent Notice pursuant to s.221 of the Act.*

cc. During development if no hardwired telecommunication connection has been provided to Lot 1 and 2 any telecommunication reticulation that is subsequently installed / utilised shall be at the cost of the lot owner for time being and protected with any necessary easements if relevant.

2. ACTIVITY STATUS

2.1 RESOURCE MANAGEMENT ACT 1991

The proposed activity requires resource consent for the following reason:

- A **discretionary** activity consent pursuant to section 127(3)(a) of the RMA, which deems any application to change or cancel consent conditions to be a discretionary activity. It is proposed to change Condition 34 (f) of resource consent RM240583 as set out at section 1.

2.2 ACTIVITY STATUS SUMMARY

Overall, the application is being considered and processed as a **discretionary** under the RMA.

NOTIFICATION DETERMINATION DECISION UNDER SECTIONS 95A AND 95B OF THE RESOURCE MANAGEMENT ACT

3. SECTION 95A- PUBLIC NOTIFICATION

Section 95A of the RMA requires a decision on whether or not to publicly notify an application. The following steps set out in this section, in the order given, are used to determine whether to publicly notify an application for a resource consent.

3.1 Step 1 – Mandatory public notification

The applicant has not requested public notification of the application (s95A(3)(a)).

Public Notification is not required as a result of a refusal by the applicant to provide further information or refusal of the commissioning of a report under section 92(2)(b) of the RMA (s95A(3)(b)).

The application does not involve exchange to recreation reserve land under section 15AA of the Reserves Act 1977 (s95A(3)(c)).

Therefore, public notification is not required by Step 1.

3.2 Step 2 – Public notification precluded

Public notification is not precluded by any rule or national environmental standard (s95A(5)(a)).

The proposal is not:

- a controlled activity; or
- a boundary activity as defined by section 87AAB that is restricted discretionary, discretionary or non-complying;

Therefore, public notification is not precluded (s95A(5)(b)).

3.3 Step 3 – If not precluded by Step 2, public notification is required in certain circumstances

Public notification is not specifically required under a rule or national environmental standard (s95A(8)(a)).

A consent authority must publicly notify an application if notification is not precluded by Step 2 and the consent authority decides, in accordance with s95D, that the proposed activity will have or is likely to have adverse effects on the environment that are more than minor (s95A(8)(b)).

An assessment in this respect is therefore undertaken, and decision made in sections 3.3.1 - 3.3.4 below:

3.3.1 Effects that must / may be disregarded (s95D(a)-(e))

Effects that must be disregarded:

- *Effects on the owners or occupiers of land on which the activity will occur and on adjacent land (s95D(a)).*
- *Trade competition and the effects of trade competition (s95D(d)).*

Effects that may be disregarded:

- An adverse effect of the activity if a rule or national environmental standard permits an activity with that effect (s95D(b)). The relevance of this to the application is provided in section 3.3.2 below.

3.3.2 Permitted Effects (s95D(b))

The consent authority **may** disregard an adverse effect of the activity if a rule or national environmental standard permits an activity with that effect. In this case, any variation to the conditions of a resource consent requires further resource consent. As such, there is considered to be no relevant permitted effects.

3.3.3 Assessment: Effects On The Environment

Taking into account sections 3.3.1 and 3.3.2 above, the following assessment determines whether the proposed activity will have, or is likely to have, adverse effects on the environment that are more than minor that will require public notification (s95A(8)(b)).

The Assessment of Effects provided at section 3 of the applicant's AEE, is considered accurate. It is therefore adopted for the purposes of this report, with the below additional assessment.

It is proposed to change this requirement to provide underground wired telecommunications connections prior to s224c. Instead, it is proposed to include a consent notice condition to enable other means of telecommunication services. The provision of alternative telecommunications will still meet the needs of those on the allotments created under RM240583. The provision of wireless or other alternative telecommunication services is not considered to result in any additional adverse effects beyond what has been consented.

Due to advances in technology, there are now numerous options available, including a variety of rural broadband providers and satellite services, such as Starlink. These alternatives can offer reliable and efficient services for future lot owners. As such, the environmental effects of not having reticulated telecommunications will be less than minor. Further the inclusion of the consent notice will ensure that any future landowner is aware of the servicing arrangement.

Where an antenna or similar structure is required to facilitate these telecommunication services, it will have to comply with the relevant Proposed District Plan standards. It is considered feasible that a mounted structure could be within height limit for the zone and comply with the relevant bulk and location controls within the PDP. The change to conditions is not likely to result in adverse effects in terms of amenity and landscape. The provision of alternative telecommunication is not anticipated to result in adverse effects on the environment in terms of amenity and landscape.

The application does not propose any other changes to the subdivision as approved by the initial decision.

Overall, the potential adverse landscape and visual amenity effects of wireless or alternative telecommunications services on the wider environment are considered to be no more than minor.

3.3.4 Decision: Effects On The Environment (s95A(8))

On the basis of the above assessment, it is considered that the proposed activity will not have adverse effects on the environment that are more than minor. Therefore, public notification is not required under Step 3.

3.4 Step 4 – Public Notification in Special Circumstances

There are no special circumstances in relation to this application.

4. LIMITED NOTIFICATION (s95B)

Section 95B(1) requires a decision on whether there are any affected persons (under s95E). The following steps set out in this section, in the order given, are used to determine whether to give limited notification of an application for a resource consent, if the application is not publicly notified under section 95A.

4.1 Step 1: certain affected groups and affected persons must be notified

Determination under s95B(2)

The proposal does not affect protected customary rights groups, and does not affect a customary marine title group; therefore limited notification is not required.

Determination under s95B(3)

Limited notification is not required under Step 1 as the proposal is not on or adjacent to, or may affect land subject to a statutory acknowledgement under Schedule 11, and the person to whom the statutory acknowledgement is made is not determined an affected person under section 95E (s95B(3)).

4.2 Step 2: if not required by Step 1, limited notification precluded in certain circumstances

Limited notification is not precluded under Step 2 as the proposal is not subject to a rule in the District Plan or is not subject to a NES that precludes notification (s95B(6)(a)).

Limited notification is not precluded under Step 2 as the proposal is not a controlled activity land use (s95B(6)(b)).

4.3 Step 3: if not precluded by Step 2, certain other affected persons must be notified

If limited notification is not precluded by Step 2, a consent authority must determine, in accordance with section 95E, whether the following are affected persons:

Boundary activity

The proposal is not a boundary activity where the owner of an infringed boundary has not provided their approval.

Any other activity

The proposal is not a boundary activity and therefore the proposed activity falls into the 'any other activity' category (s95B(8)), and the adverse effects of the proposed activity are to be assessed in accordance with section 95E.

4.3.1 Considerations in assessing adverse effects on Persons (S95E(2)(a)-(c))

- a) The consent authority **may** disregard an adverse effect of the activity on a person if a rule or national environmental standard (NES) permits an activity with that effect. Section 3.3.2 above sets out the relevance of this to the application.
- b) The consent authority **must** disregard an adverse effect of the activity on the person if the effect does not relate to a matter for which a rule or a national environmental standard reserves control or restricts discretion; and
- c) The consent authority **must** have regard to every relevant statutory acknowledgement specified in [Schedule 11](#).

4.3.1 [ii] Persons who have provided written approval (s95E(3))

No person has provided written approval for the proposed change for the purpose of s95E(3).

4.3.2 Assessment: Effects on Persons

Taking into account the exclusions in sections 95E(2) and (3) as set out in section 4.3.1 above, the following outlines an assessment as to whether the activity will have or is likely to have adverse effects on persons that are minor or more than minor:



Figure 1. Aerial image of the subject site (blue) and potentially affected persons (orange).

Resource consent RM240583 was processed on a non-notified basis; however, New Zealand Transport Agency Waka Kotahi (NZTA) gave their written approval.

The proposal does not seek to change the nature or scale of the activity under RM240952 but solely updates the required provision of telecommunication services. The change allows for alternative telecommunication services (internet/satellite-based alternatives), potentially minimising any associated adverse effects relating to nuisance from physical works for standard services. The applicant and any future landowners will have access to various telecommunication services, including satellite options. Where an antenna or similar structure is required to facilitate alternative telecommunication services, it will have to comply with the relevant Proposed District Plan standards. Overall, the provision for wireless telecommunication services is not likely to result in any additional visual effects beyond what has been consented. The applicant and any future landowner would have the choice of a number of providers with the ability to provide fast internet broadband. Satellite services are also available from Starlink. It is considered that any potential adverse effects on the adjacent property owners/occupiers are to be less than minor.

Overall, the adverse effects on the owners and occupiers of the addresses identified above are considered to be less than minor. No other persons are considered to be adversely affected by the proposal.

4.3.3 Decision: Effects on Persons (s95E(1))

In terms of section 95E of the RMA, and on the basis of the above assessment, no person is considered to be adversely affected.

Therefore, limited notification is not required under Step 3.

4.4 Step 4 – Further Notification in Special Circumstances (s95B(10))

Special circumstances do not apply that require limited notification.

5. NOTIFICATION DETERMINATION

For the reasons set out in sections 3 and 4 of this notification decision report, under s95A and s95B of the RMA, the application is to be processed on a non-notified basis.

Prepared by



Ella Walker-Smith
PLANNER

Decision made by



Dr Lee Beattie
INDEPENDENT COMMISSIONER

DECISION UNDER SECTION 104 OF THE RESOURCE MANAGEMENT ACT

6. S.104 ASSESSMENT

This application must be considered in terms of Section 104 of the RMA.

Subject to Part 2 of the RMA, Section 104 sets out those matters to be considered by the consent authority when considering a resource consent application. Considerations of relevance to this application are:

- (a) any actual and potential effects on the environment of allowing the activity; and
- (ab) any measure proposed or agreed to by the applicant for the purpose of ensuring positive effects on the environment to offset or compensate for any adverse effects on the environment that will or may result from allowing the activity; and
- (b) any relevant provisions of:
 - (i) A national environmental standard;
 - (ii) other regulations;
 - (iii) a national policy statement;
 - (iv) a New Zealand coastal policy statement;
 - (v) a regional policy statement or proposed regional policy statement;
 - (vi) a plan or proposed plan; and
- (c) any other matter the consent authority considers relevant and reasonably necessary to determine the application.

6.1 EFFECTS ON THE ENVIRONMENT (s104(1)(a)&(ab))

Actual and potential effects on the environment have been outlined in the section 95 report. Conditions of consent can be imposed under s108 of the RMA as required to avoid, remedy or mitigate adverse effects (s104)(1)(a)).

6.2 RELEVANT DISTRICT PLAN PROVISIONS (s104(1)(b)(vi))

Operative District Plan

The relevant operative objectives and policies are contained within Sections 5 (Rural Areas) and 15 (Subdivision, Development and Financial Contributions) of the ODP.

Given the nature of the change, the proposal is considered to remain consistent with the relevant objectives and policies as determined by the assessment undertaken as part of Resource Consent RM240583.

The relevant objectives and policies of Section 15 aim to provide necessary services to developments in anticipation of land use activities and to protect landscape values. The provision of wireless communications is considered to be adequate in ensuring the development is serviced for the purpose of residential activity. This change is not anticipated to result in adverse effects relating to landscape values, as assessed above. The relevant objectives and policies of Section 5 aim to protect the character and landscape value of the rural area and to remedy or mitigate adverse effects of activities on rural amenity. The proposed change is not anticipated to result in adverse effects beyond what was assessed under RM240583.

Overall, the proposal is considered to be in accordance with the relevant objectives and policies of the ODP.

Proposed District Plan

The relevant operative objectives and policies are contained within Chapters 21 (Rural Zone) and 27 (Subdivision and Development) of the PDP. The applicant has provided an assessment against the relevant objectives and policies of the Proposed District Plan within Section 4 of the applicant's AEE. This is considered accurate and is therefore adopted for the purpose of this report, with the following additions.

The proposal will continue to provide for telecommunication services through alternative means, providing additional choice for owners while not adversely affecting the character of the environment. The proposal is considered to remain consistent with the relevant objectives and policies as determined by the assessment undertaken as part of Resource Consent RM240583.

Overall, the proposal is considered to be consistent with the relevant objectives and policies of the PDP.

Weighting between Operative District Plan and Proposed District Plan

In this case, as the conclusions reached in the above assessment lead to the same conclusion under both the ODP and PDP, no weighting assessment is required.

6.3 PART 2 OF THE RMA

The purpose of the RMA is to promote the sustainable management of natural and physical resources.

The proposal will result in the sustainable management of natural and physical resources (s5(a)), whilst not affecting the life-supporting capacity of air, water, soil or ecosystems (s5(b)). Therefore, it is determined that the proposal is consistent with the intentions of Part 2 of the RMA.

Section 6 of the RMA highlights a number of matters of national importance to be provided for. No matters of national importance are considered relevant to this application.

Section 7 outlines other matters council shall give regard to. Of relevance, Section 7(c) relates to the maintenance and enhancement of amenity values. Section 7(f) relates to the maintenance and enhancement of the quality of the environment. The proposed activity will not detract from the amenity values or the rural character of the area.

Section 8 of the RMA requires that the principles of Te Tiriti o Waitangi are taken into account. This proposal is consistent with the treaty principles.

Overall, the proposal is considered to meet the purpose and principles of the RMA.

7. DECISION ON RESOURCE CONSENT PURSUANT TO SECTION 127 OF THE RMA

Consent is **granted** to change Condition 34 (f) of resource consent RM240583.

Condition 34 (f) of resource consent RM240583 is changed to read as follows (deleted text ~~struck through~~, added text **underlined**):

34. *Prior to certification pursuant to section 224(c) of the Resource Management Act 1991, the consent holder shall complete the following:*

...

- f. *Written confirmation shall be provided from the telecommunications network supplier responsible for the area, that provision of underground telephone services has been made available to the building platform on Lots 1 & 2 and that all the network supplier's requirements for making such means of supply available have been met.*

Or

The consent holder shall provide written evidence of an alternative future telecommunications supply to Lots 1 and 2.

The following condition is also proposed to be added and registered as a consent notice as follows:

35. *The following conditions of the consent shall be complied with in perpetuity and shall be registered on the Titles of Lots 1 & 2 by way of Consent Notice pursuant to s.221 of the Act.*

cc. During development if no hardwired telecommunication connection has been provided to Lot 1 and 2 any telecommunication reticulation that is subsequently installed / utilised shall be at the cost of the lot owner for time being and protected with any necessary easements if relevant.

- All other conditions of RM240583 shall continue to apply.
- The granting of this section 127 change to conditions does not alter the lapse date for RM240583 which lapses on **11 March 2030**.
- The updated resource consent conditions for RM240583 are in **Appendix 2** of this decision report.
- A full updated plan set is attached in **Appendix 3**.

Prepared by

Decision made by



Ella Walker-Smith
PLANNER



Dr Lee Beattie
INDEPENDENT COMMISSIONER

8. OTHER MATTERS

Local Government Act 2002: Development Contributions

This proposal under the original resource consent RM240583 may require a development contribution under the Local Government Act 2002 in line with QLDC's Development Contribution Policy. Where a development contribution is determined as required, payment will be due prior to commencement of the consent, except where a Building Consent is required when payment shall be due prior to the issue of the code of compliance certificate.

Please contact the Council if you require a Development Contribution Estimate.

Administrative Matters

The costs of processing the application are currently being assessed and you will be advised under separate cover whether further costs have been incurred.

The Council will contact you in due course to arrange the required monitoring. It is suggested that you contact the Council if you intend to delay implementation of this consent or if all conditions have been met.

This resource consent is not a building consent granted under the Building Act 2004. A building consent must be obtained before construction can begin.

The granting of a change to conditions pursuant to s127 of the RMA does not change the lapse date of RM240583.

If you have any enquiries, please contact us at resourceconsent@qldc.govt.nz.

9. APPENDICES LIST

APPENDIX 1 – Updated conditions of resource consent RM240583 as changed by RM260466

APPENDIX 2 – Applicant's AEE

APPENDIX 3 – Updated approved plan set

APPENDIX 1 – UPDATED CONDITIONS OF RM240583 AS CHANGED BY RM260466

For Your Information

Monitoring

The conditions in your decision will advise if monitoring is required. To assist with compliance of your resource consent, and to avoid your monitoring deposit being used before your development starts, please complete the “[Notice of Works Starting Form](#)” and email to the Monitoring Planner at RCMonitoring@qldc.govt.nz

Environmental Management Plan

Please be aware of your requirements to appropriately manage environmental effects associated with your activity. Site management means having adequate controls in place on your site. This will ensure compliance is achieved and harmful by-products of construction activities do not damage the environment or cause nuisance to neighbours. We’ve provided some [advice](#) to help you mitigate any possible adverse effects that may be generated on your site as a result of construction related activities.

Engineering Acceptance

You may also have conditions that require you to apply for Engineering Acceptance. To apply, please complete the [Engineering Acceptance Application Form](#) and submit to engineeringapprovals@qldc.govt.nz. Further information regarding Engineering Acceptance can be found [here](#).

Development Contribution

If this decision requires a development contribution (DC) charge, we will be sending a notice in due course. To answer questions such as what is a DC charge, when a DC charge is triggered and timing of payments, this information is available [here](#).

If you wish to make a DC estimate calculation yourself, please use this [link](#). Full details on current and past policies can be found [here](#).

Subdivision Conditions

1. That the development must be undertaken/carried out in accordance with the plans:

- Clark Fortune McDonald & Associates – *D & J Jardine*: Lots 1 – 3 being a Proposed Subdivision of PT Lot 1 DP 26261 and Section 1 SO 16995 – Sheet 02_01 REV E dated 04 August 2020
- Clark Fortune McDonald & Associates – *D & J Jardine*: Lots 1 – 3 being a Proposed Subdivision of PT Lot 1 DP 26261: Proposed Earthworks – Sheet 02_02 REV ER dated 04 August 2020
- Clark Fortune McDonald & Associates – *D & J Jardine*: Lots 1 – 3 being a Proposed Subdivision of PT Lot 1 DP 26261: Proposed Earthworks: Sections – Sheet 03_03,
- Clark Fortune McDonald & Associates – *D & J Jardine*: Lots 1 – 3 being a Proposed Subdivision of PT Lot 1 DP 26261: Proposed Earthworks: Sections – Sheet 03_02,
- Clark Fortune McDonald & Associates – *D & J Jardine*: Lots 1 – 3 being a Proposed Subdivision of PT Lot 1 DP 26261 and Section 1 SO 16995: Landscape Management Plan – Sheet 04_01 REV E dated 04 August 2020
- Clark Fortune McDonald & Associates – *D & J Jardine*: Lots 1 – 3 being a Proposed Subdivision of PT Lot 1 DP 26261 and Section 1 SO 16995: Landscape Management Plan – Sheet 04_02 REV E dated 04 August 2020
- Clark Fortune McDonald & Associates – *D & J Jardine*: Lots 1 – 3 being a Proposed Subdivision of PT Lot 1 DP 26261 and Section 1 SO 16995: Landscape Management Plan – Sheet 04_03,
- Environmental Management Plan prepared by Enviroscope, reference 22064, revision A

stamped as approved on 11 March 2025 and the application as submitted, with the exception of the amendments required by the following conditions of consent.

2. This consent shall not be exercised and no work or activity associated with it may be commenced or continued until the following charges have been paid in full: all charges fixed in accordance with section 36(1) of the Resource Management Act 1991 and any finalised, additional charges under section 36(3) of the Act.
3. All engineering works shall be carried out in accordance with the Queenstown Lakes District Council's policies and standards, being QLDC's Land Development and Subdivision Code of Practice adopted on 8 October 2020 and subsequent amendments to that document up to the date of issue of any resource consent.

*Note: The current standards are available on Council's website via the following link:
<http://www.qldc.govt.nz/planning/resource-consents/qldc-land-development-and-subdivisioncode-of-practice/>*

To be completed prior to the commencement of any works on-site

4. The owner of the land being developed shall provide a letter to the Principal Resource Management Engineer at Council advising who their representative is for the design and execution of the engineering works and construction works required in association with this development and shall confirm that these representatives will be responsible for all aspects of the works covered under Sections 1.7 & 1.8 of QLDC's Land Development and Subdivision Code of Practice, in relation to this development.
5. At least five (5) working days prior to commencing any works within the State Highway road reserve, the consent holder shall submit a traffic management plan to undertake works to New Zealand Transport Agency or its Network Management Consultant for approval. The Traffic Management Plan shall be prepared by a Site Traffic Management Supervisor. All contractors obligated to implement temporary traffic management plans shall employ a qualified STMS on site. The STMS shall implement the Traffic Management Plan. A copy of the approved plan shall be submitted to the Principal Engineer at Council prior to works commencing.
6. Prior to the commencement of works the consent holder shall provide for review and acceptance a site management plan for the proposed earthworks in accordance with Section 2.3.7 of the QLDC Code of Practice and the Guide to Earthworks in the Queenstown Lakes District brochure. This shall specifically include measures to limit the risk of possible rock fall onto State Highway 6 below. These measures shall be implemented **prior** to the commencement of any earthworks on site and shall remain in place for the duration of the project, until all exposed areas of earth are permanently stabilised.
7. Prior to commencing any works on the site, the consent holder shall obtain 'Engineering Review and Acceptance' from the Queenstown Lakes District Council for all development works and information requirements specified below. An 'Engineering Review and Acceptance' application shall be submitted to the Manager of Resource Management Engineering at Council and shall include copies of all specifications, calculations, design plans and Schedule 1A design certificates as is considered by Council to be both necessary and adequate, in accordance with Condition (3), to detail the following requirements:
 - a. The upgrading of the existing vehicle crossing (NZTA id CP34) to comply with Diagram 2 of Appendix 7 of the District Plan. This shall be trafficable in all weathers and be capable of withstanding an axle load of 8.2 tonnes or have a load bearing capacity of no less than the public roadway serving the property, whichever is the lower. Provision shall be made to continue any roadside drainage and as a minimum the crossing shall be sealed for the first 6m from the state highway carriageway.
 - b. The upgrading of the existing vehicle access track from the vehicle crossing (NZTA ID CP34) to provide access to the building platforms on Lots 1 & 2 in accordance with QLDC standards and specifically Figure E1 of the QLDC Code of Practice 20105 (noting the finished surface can be a minimum 100 mm of compacted AP40 gravel) . Designs shall include confirmation and calculations to prove that suitable culverts have been installed to convey overland flows from ephemeral water courses and provision to capture and dispose of stormwater runoff up to the under the 20 year primary rainfall event.

- c. Provision of a minimum supply of 2,100 litres per day of potable water to the building platforms on Lots 1 & 2 accordance with the Ken Higgle –Central Water Ltd report titled '*D & J Jardine Subdivision, Lumberbox Creek, Kingston Road – Water Supply*' dated 1 March 2017. The supply shall be able to be treated to consistently comply with the requirements of the Drinking Water Standard for New Zealand 2005 (Revised 2008).
 - d. The provision of upstream surface water cut-off drains above the building platforms on Lots 1 & 2 in accordance with the recommendations of the Geosolve Ltd report titled '*Geological Hazard and Geotechnical assessment Lumberbox Quarry, SH6, Queenstown*' GeoSolve Ref: 160216 dated 2nd June 2017. This design shall be such that overland flows in a 1 in 100 year event are contained so that there is no inundation of any buildable areas on Lots 1 & 2, and no increase in run-off onto land beyond the site from the predevelopment situation.
 - e. The provision of Design Certificates for all engineering works associated with this subdivision submitted by a suitably qualified design professional (for clarification this shall include the upgraded access track, water supply system, and overland flow cut off drains). The certificates shall be in the format of the QLDC's Land Development and Subdivision Code of Practice Schedule 1A Certificate.
 - f. The consent holder shall provide to the Council Subdivision Planner for certification by a suitably qualified expert, a "*Remediation Action Plan and Site Management Plan*" for the removal of the lead contaminated soil on Lot 2. The plan shall be prepared by a Suitably Qualified and Experienced Practitioner (SQEP) under the National Environmental Standard for Assessing and Managing Contaminants in Soil to Protect Human Health, and shall detail the procedures for remediating the site, including the safe soil removal.
8. At least 15 working days prior to any works commencing on site the Consent Holder shall submit an updated Environmental Management Plan (EMP) to Council's Monitoring and Enforcement Team for review and acceptance . This document shall be generally in accordance with the approved Environmental Management Plan and must be prepared by a Suitably Qualified and Experienced Person. The EMP shall be in accordance with the principles and requirements of the *Queenstown Lakes District Council's Guidelines for Environmental Management Plans* and specifically shall address the following environmental elements as specified in the guidelines:
- a) Administrative Requirements
 - (i) Weekly site inspections
 - (ii) Monthly environmental reporting
 - (iii) Monthly monitoring by a Suitably Qualified and Experienced Person
 - (iv) Notification and management of environmental incidents
 - (v) Records and registers
 - (vi) Environmental roles and responsibilities of personnel (including nomination of Principal Contractor)
 - (vii) Site induction
 - b) Operational Requirements
 - (i) Erosion and sedimentation (including Erosion and Sediment Control Plan)
 - (ii) Water quality
 - (iii) Dust
 - (iv) Cultural heritage
 - (v) Noise
 - (vi) Vibration
 - (vii) Contaminated sites
 - (viii) Indigenous vegetation clearance
 - (ix) Chemical and fuel management
 - (x) Waste management
9. Prior to ground-disturbing activities on the initial stage of works or any subsequent new stage of works, the Consent Holder shall engage an Appropriately Qualified Person to prepare and submit an Erosion and Sediment Control Plan (ESCP) to Council's Monitoring and Enforcement Team for review and acceptance. This plan shall be a sub-plan of the overarching EMP and must be prepared in

accordance with the requirements outlined on pages 13 – 18 in *Queenstown Lakes District Council's Guidelines for Environmental Management Plans*. These plans must be updated when:

- a) The construction program moves from one Stage to another; or
 - b) Any significant changes have been made to the construction methodology since the original plan was accepted for that Stage; or
 - c) There has been an Environmental Incident and investigations have found that the management measures are inadequate.
10. Prior to commencing ground-disturbing activities, the Consent Holder shall nominate an Environmental Representative for the works program in accordance with requirements outlined on pages 9 and 10 of the *Queenstown Lakes District Council's Guidelines for Environmental Management Plans*.
11. Prior to commencing ground disturbing activities, the Consent Holder shall ensure that all staff (including all sub-contractors) involved in, or supervising, works onsite have attended an Environmental Site Induction in accordance with the requirements on page 8 of the *Queenstown Lakes District Council's Guidelines for Environmental Management Plans*.

During construction:

12. Prior to bulk earthworks operations (and vegetation clearance) for the initial stage or any subsequent new stage of works, the Consent Holder must install erosion and sediment controls in accordance with the ESCP as well as provide As-built documentation for these controls by Suitably Qualified and Experienced Person . It is noted that earthworks required to construct environmental management controls are allowed to commence once Council has provided notice that has been met.
13. All works shall be undertaken in accordance with the most current version of the EMP as accepted as suitable by Council.
14. The EMP shall be accessible on site at all times during work under this consent.
15. The Consent Holder shall establish and implement document version control. Council shall be provided with an electronic copy of the most current and complete version of the EMP at all times.
16. The Consent Holder shall develop and document a process of periodically reviewing the EMP as outlined on page 6 of the *Queenstown Lakes District Council's Guidelines for Environmental Management Plans*. No ground disturbing activities shall commence in any subsequent stage of development until an EMP has been submitted and deemed suitable by Council 's Monitoring and Enforcement Team.
17. The Consent Holder shall undertake and document weekly and Pre and Post-Rain Event site inspections as outlined on pages 10 and 11 of the *Queenstown Lakes District Council's Guidelines for Environmental Management Plans*.
18. A SQEP shall monitor the site monthly to ensure that the site is complying with its EMP, identify any new environmental risks arising that could cause an environmental effect and suggest alternative solutions that will result in more effective and efficient management. This must include a specific audit by the SQEP of the effectiveness of the ESCP. The outcome of these inspections should be included in the Monthly Environmental Report referred to Condition 19 below.
19. The Consent Holder shall complete and submit exception reporting to QLDC in the form of a monthly environmental report. The monthly environmental report shall be submitted to QLDC's Regulatory Department within five (5) working days of the end of each month.

20. In accordance with page 9 of the *Queenstown Lakes District Council's Guidelines for Environmental Management Plans*, where any Environmental Incident where the EMP has failed leading to any adverse environmental effects offsite occurs the Consent Holder shall:
- a) Report to QLDC details of any Environmental Incident within 12 hours of becoming aware of the incident.
 - b) Provide an Environmental Incident Report to QLDC within 10 working days of the incident occurring as per the requirements outlined in Section 3.3.1 of *Queenstown Lakes District Council's Guidelines for Environmental Management Plans*.
21. Environmental records are to be collated onsite and shall be made available to QLDC upon request; immediately if the request is made by a QLDC official onsite and within 24 hours if requested by a QLDC officer offsite. Records and registers to be managed onsite shall be in accordance with the requirements outlined on page 14 of the *Queenstown Lakes District Council's Guidelines for Environmental Management Plans*.
22. Any Discharge (refer definition in the *Queenstown Lakes District Council's Guidelines for Environmental Management Plans*) that leaves the site shall comply with the Water Quality Discharge Criteria outlined on page 19 of the *Guideline*., with the exception of Total Suspended Solids which should be at a concentration of no more than 25mg/L.

To be monitored throughout earthworks

23. All earthworks and construction traffic shall utilise existing State Highway 6 vehicle crossing point identified by NZTA as CP34, unless specific approval from NZTA or it nominated agent has been obtained to access from elsewhere.
24. No permanent batter slope within the site shall be formed at a gradient that exceed 1.5H:1.0V for in-situ glacial till and 2.0H:1.0V for reworked/fill slopes.
25. All earthworks shall be carried out under the guidance of suitably qualified and experienced geotechnical professional as described in Section 2 of the Queenstown Lakes District Council's Land Development and Subdivision Code of Practice and in accordance with the recommendations of the Geosolve Ltd 'Geological Hazard and Geotechnical assessment Lumberbox Quarry, SH6, Queenstown' report ref No. 160216 and dated 2nd June 2017.
26. The earthworks contractor shall take all practical measures to ensure that rock fall from the earthwork site on to the state highway (SH6) below does not occur.
27. The consent holder shall implement suitable measures to prevent deposition of any debris on surrounding roads by vehicles moving to and from the site. In the event that any material is deposited on any roads, the consent holder shall take immediate action, at his/her expense, to clean the roads. The loading and stockpiling of earth and other materials shall be confined to the subject site.
28. No earthworks, temporary or permanent, are to breach the boundaries of the site. With the exception of earthwork associated with improvements to the NZTA CP34 vehicle crossing to the state highway.
29. Only cleanfill material shall be deposited or utilised at the site. Cleanfill material is defined as material that when buried/placed will have no adverse effect on people or the environment, and includes virgin natural materials such as clay, soil and rock, and other inert materials such as concrete or brick that are free of:
- i. combustible, putrescible, degradable or leachable components;
 - ii. hazardous substances;
 - iii. products or materials derived from hazardous waste treatment, hazardous waste stabilisation or hazardous waste disposal practices;

- iv. materials that may present a risk to human or animal health such as medical and veterinary waste, asbestos or radioactive substances;
- v. liquid waste.

30. Acceptable materials include bricks, pavers, masonry blocks, ceramics, un-reinforced concrete, reinforced concrete where any protruding steel is cut off at the concrete face, fibre cement building products, road sub-base, tiles and virgin soils (including rock, sand, gravel, clay) - provided they are uncontaminated. Any other materials will require the prior written approval of Council prior to disposal at the site. Topsoil shall be used for final cover only.

On completion of earthworks

31. On completion of the earthworks, the consent holder shall complete the following:

- a) All exposed areas shall be top-soiled and grassed/revegetated or otherwise permanently stabilised in keeping with the surrounding site and shall be maintained to achieve a healthy and continuous sward of grass, or planted as per the council certified "*Landscape Mitigation Planting Plan*" certified pursuant to condition (34)(l) within four months after earthworks are completed.
- b) The consent holder shall remedy any damage to all existing road surfaces and berms that result from work carried out for this consent.

To be completed before Council approval of the Survey Plan

32. Prior to the Council signing the Survey Plan pursuant to Section 223 of the Resource Management Act 1991, the consent holder shall complete the following:

- a) All necessary easements shall be shown in the Memorandum of Easements attached to the Survey Plan and shall be duly granted or reserved.
- b) Overland flow cut off drains required on Lot 2 to protect the building platform on Lot 1 under the Geosolve Report titled '*Geological Hazard and Geotechnical assessment Lumberbox Quarry, SH6, Queenstown*' (GeoSolve Ref: 160216 dated 2nd June 2017) require easements to ensure on-going protection and maintenance access. These easements shall be shown in the Memorandum of Easements attached to the Survey Plan and shall be duly granted or reserved.

Amalgamation Condition

33. Prior to Council signing a certificate pursuant to section 241(4)(b) of the Resource Management Act 1991, the consent holder shall provide proof of registration with Land Information New Zealand for the amalgamation of Lot 3 with Lot 2 DP26261.

The following amalgamations shall be registered with Land Information New Zealand (CSN 1941276):

That Lot 3 hereon be held in the same Record of Title as Lot 2 DP26261.

To be completed before issue of the s224(c) certificate

34. Prior to certification pursuant to section 224(c) of the Resource Management Act 1991, the consent holder shall complete the following:

- a. The consent holder shall provide "as-built" plans and information required to detail the water supply system completed in relation to or in association with this subdivision to the Subdivision Planner at Council. This information shall be formatted in accordance with Council's 'as-built' standards and shall include tank and valve positions.
- b. A digital plan showing the location of all building platforms as shown on the survey plan /Land Transfer Plan shall be submitted to the Subdivision Planner at Council. This plan shall be in terms of New Zealand Transverse Mercator 2000 coordinate system (NZTM2000), NZGDM 2000 datum.

- c. The completion and implementation of all certified works detailed in Condition (7) above.
- d. The consent holder shall provide evidence to the satisfaction of the Subdivision Planner at Council as to how the water supply will be monitored and maintained on an ongoing basis.
- e. Written confirmation shall be provided from the electricity network supplier responsible for the area, that provision of an underground electricity supply has been made available (minimum supply of single phase 15kva capacity) to the building platform on Lots 1 & 2 and that all the network supplier's requirements for making such means of supply available have been met.
- f. Written confirmation shall be provided from the telecommunications network supplier responsible for the area, that provision of underground telephone services has been made available to the building platform on Lots 1 & 2 and that all the network supplier's requirements for making such means of supply available have been met.

Or

The consent holder shall provide written evidence of an alternative future telecommunications supply to Lots 1 and 2.

- g. The submission of Completion Certificates from the Contractor and the Engineer advised in Condition (4) for all engineering works completed in relation to or in association with this subdivision/development (for clarification this shall include the upgraded access track, water supply system, and overland flow cut off drains). The certificates shall be in the format of a Producer Statement, or the QLDC's Land Development and Subdivision Code of Practice Schedule 1B and 1C Certificate.
- h. The consent holder shall provide a geotechnical completion report and a Schedule 2A "Statement of professional opinion as to suitability of land for building construction" in accordance with Section 2.6.1 of QLDC's Land Development and Subdivision Code of Practice that has been prepared by suitably qualified geotechnical professional as defined in Section 1.2.2 and demonstrates to Council that the proposed building platforms/lots are suitable for building development. The Schedule 2A certification shall include a statement under Clause 3(e) covering Section 106 of the Resource Management Act 1991. Any remedial works outlined on the Schedule 2A that requires works across lot boundaries shall be undertaken by the consent holder prior to 224(c) certification being issued. In the event that the Schedule 2A certificate issued contains limitations or remedial works required, then a consent notice shall be registered on the relevant Computer Freehold Registers. The consent notice condition shall read; "Prior to any construction work (other than work associated with geotechnical investigation), the owner for the time being shall submit to Council for certification, plans prepared by a suitably qualified engineer detailing the proposed foundation design, earthworks and/or other required works in accordance with the Schedule 2A certificate attached. All such measures shall be implemented prior to occupation of any building."
- i. The consent holder shall remedy any damage to all existing road surfaces and berms that result from work carried out for this consent.
- j. The consent holder shall provide evidence that access CP35 is permanently and physically closed with fencing along the boundary of the site.
- k. The consent holder shall provide evidence to the Council Subdivision Planner that all remediation work and removal of contaminated soil from Lot 2 has been completed in accordance with the certified "*Remediation Action Plan and Site Management Plan*" under j) above, prior to the section 224c certification. This evidence may be in written form from the SQEP.
- l. A scaled and detailed "*Landscape Mitigation Planting Plan*" (LMPP) for Lots 1 and 2 shall be produced by a qualified landscape architect and submitted to council for certification, and be based on the Landscape Management Plan Rev B dated 09/03/17 submitted with consent application RM240583.

The LMPP shall achieve the following:

- (i) The detailed planting plan to be to a 1:500 scale or smaller.

(ii) Identify and label the location and extent of building platforms, domestic curtilage areas, access drive, existing landform and landform modification including heights and 1m topographical contours within Lots 1 and 2.

(iii) Identify the location of plant species and/or mounding (as per the consented earthworks plan, 'Lots 1-3 Being a subdivision of Pt Lot 1 DP 26261 Proposed Earthworks, Rev B dated 09/02/17) in locations that will provide visual screening as required below. Earth mounds shown on the consented earthworks plans to be no less than 1.2m height above the finished building platform height.

(vi) To show all landscape management areas with the legend as per the submitted 'Landscape Mitigation Plan' with the following amendments:

- *Identify a 10m fire safety clear zone boundary and a 30m **moderate** or less flammability species boundary setback from each building platform.*
- *Amend the boundary between Area C (and offset areas C2) and Area D to follow the 30m low flammability setback boundary on the downslope area to the building platforms.*
- *To expand the C1 areas by linking all these areas together through a continuous buffer linkage alongside the SH6 boundary of no less than 20m in width.*
- *To identify Area C Escarpment Area as:*

*C - Regenerative management of indigenous vegetation, with targeted weed control and interplanting of ecological restorative planting of indigenous species **of moderate or less flammability and mature heights below 3m.***

*C1- Native forest management area replacing eucalyptus trees **with native beech and kohuhu trees.***

C2 - Mix of tall native shrubs.

(v) Identify that all areas beyond the domestic curtilage are to have all existing naturally regenerating and planted native vegetation to be retained and not modified in any manner.

(vi) Extend the proposed covenanted area (A) for protection of native vegetation as shown on the landscape management plan submitted with the application to areas B, C and area F.

(vii) Demonstrate that mitigation planting and earthworks will ensure that no part of the approved building platforms up to the consented height control will be visible from State Highway 6 within a 2km radius of each platform, and from the council reserve land to the west within five years of planting. Ensure that views of the proposed platforms from 2km or more distant and from the waters of the lake are diffused and broken by trees and the development sits within a vegetated context. Demonstration of visual mitigation to be supported with scaled sight-line cross sections through the site taken from key locations along the highway and within the western end of the council reserve car park and identify the relative heights of platforms, mounding and estimated plant heights at five years on the LLMP that achieve total visual screening from these viewpoints. Council may request further information to determine if proposed planting mitigation is sufficient to achieve this condition for certification.

(viii) Mitigation planting to be provided along the length of the access drive within Lot 1 up to the boundary of the domestic curtilage area to a depth of no less than 3m no less than 4m from the downslope edge of the formed carriageway. Planting depth shall vary but be no less than 3m (3 plants wide) and provide concentrated clusters to break up lineal patterns alongside of the drive. Planting shall be indigenous species only selected from the plant list provided within the amended ecological management plan certified pursuant to condition 34(q). Species shall have a mature height of no less than 5m and include no less than 10 species to provide diversity and shall include no less than 30% of total plant number shall be *Pittosporum tenuifolium*. Plants shall be spaced at a density of no greater than **2.0m** apart and planted at a grade no less than 0.5m in height at time of planting.

(ix) Include no less than 40 indigenous trees per lot to be planted to the east of the consented building platforms and within Area E to soften earthworks and maintain a vegetated backdrop to development. Trees shall have a mature height of no less than 6m, be a low to low-moderate flammability species, spaced to ensure a 4m separation between tree canopies, and be selected from the ecological management plan native tree list.

(x) To show infill planting within all of the C1 area with a mix of mountain beech / *Fuscospora cliffortoides* (50%) and Kohuhu / *Pittosporum tenuifolium* (50%) planted at a grade no less than 1.2m height / PB3, planted in clusters of between 15-20 plants at 1.5m centres with 10m spacings between the edge of each cluster, and clusters planted as an informal triangular grid to support screening the building platforms and enable space between clusters and no less than 600 plants to be planted.

(xi) The plan shall include full planting schedule for mitigation planting with botanical names, grades, density and numbers of plants for each species. All plants shall be eco-sourced from the Lakes Ecological Region.

(xii) Each of the remaining existing eucalyptus trees (as of 10 October 2024) over a height of 4m within areas A, c and F shall be surveyed and locations accurately shown on the LMPP as existing eucalyptus trees.

(xiii) To include the Ecological Report recommendations and outcomes within the report entitled "Ecological Assessment for a proposed subdivision of the Lumberbox Quarry" dated 13 February 2017 prepared by Natural Solutions for Nature Ltd, from the RM170483 consent application which include the preparation of a management plan for Lots 1 and 2 to:

- support the regeneration kohuhu / broadleaf forest,
- exclude animal stock from Lots 1 and 2,
- identify areas of woody weed control and where planting will enhance diversity that will best support natural regeneration of the regenerating kohuhu community,
- remove of all buddleia, gorse, old man's beard, blackberry, hemlock, sycamore, and wilding conifers, and broom where it will not be overtopped by regenerating Kohuhu forest or it hinders the establishment of regenerating or planted natives.
- planting of 1000 plants into Areas B and F, with bracken removed around planting and trampled down around existing native vegetation over 1.5m in height. (This is in addition to the visual mitigation planting requirements).

(xiv) To clearly identify **all** areas A,B, C, and area F (downslope of the access drive), as areas where all existing and regenerating native vegetation must not be removed or modified in any manner, and to be managed to support the regeneration of native forest cover.

m) Where ground proves to be unsuitable for planting the ground shall be improved with introduction of good quality topsoil to a depth of no less than 400mm, minor ground shaping to support moisture retention, shelter, and ground stability, removal of rocks and breaking of compacted ground to ensure planting sites support healthy and quick plant growth each relevant location.

n) All woody exotic weeds including buddleia, gorse, old mans beard, blackberry, hemlock, elderberry, sycamore and wilding conifer species, but excluding broom shall be removed from within Lots 1 and 2. Broom to be removed where it hinders natural regeneration and the establishment of planted native plants. The supplementary native planting shall be planted as per the "Ecological Management Plan" to support native regeneration and to ensure adequate canopy cover will be achieved to shade out existing broom.

o) All earthworks to be completed, and all planting shall be completed as per the certified LMPP and the ecological management plan and shall include pest protection sleeves, organic mulch and a slow release fertiliser applied to each plant. An irrigation system is to be

installed an operational for all new planting within Areas D, F, C, C1 and C2. All dead eucalyptus trees to be felled and removed from the site, and all planting to have been successfully established and in a healthy condition for a period of no less than 12 months from date of completion of planting prior to inspection of planting by council for 244c signoff.

p) Register the native vegetation protection covenant for Areas A, B, C, E and F as identified on the council certified landscape management plan submitted with the application, and identify these areas on the subdivision plan.

q) An amended "*Ecological Management Plan*" prepared by a qualified ecologist for Lots 1 and 2 shall be submitted to Council for certification, and shall achieve the following:

- (i) Be based upon the outcomes and recommendations of the ecology report submitted with the application,
- (ii) Identify the methodology to achieve the natural regeneration of native forest canopy coverage within areas A, B, C and F,
- (iii) Include a pest and weed management strategy to eradicate weed species and manage animal pest that would impede the natural regeneration of native vegetation. The strategy shall include the botanical names of all exotic woody weed species to be removed and identify the on-going management required to ensure the lots are maintained free of exotic woody weeds.
- (iv) Include a native planting strategy to ensure native vegetation coverage as shown on the landscape management plan. Planting to include no less than 1000 plants per lot, distributed across the property and to be in addition to planting required for visual mitigation.
- (v) Include a planting specification and plant schedule, plant maintenance schedule for the first three years of establishment, and for on-going management, and an irrigation strategy for a minimum two year establishment period from completion of planting.

r) The consent holder shall submit to the Subdivision Officer at Council Chemical and bacterial tests of the water supply that clearly demonstrate compliance with the Water Services Act 2021 and Water Services (Drinking Water Standards for New Zealand) Regulations 2022 and Aesthetic Values for Drinking Water Notice 2022 (or superseding legislation and standards and notices). The chemical test results shall be no more than 3 years old, and the bacterial test results no more than 3 months old, at the time of submitting the test results. The testing must be carried out by a recognised laboratory (refer to Water Services Act 2021 subpart 11). Generally for private potable water scheme

s) If either the test results required in Condition 19(r) above show the water supply does not conform to the Water Services Act 2021 and Water Services (Drinking Water Standards for New Zealand) Regulations 2022 and Aesthetic Values for Drinking Water Notice 2022 (or superseding legislation and standards and notices) then a suitably qualified and experienced professional shall provide a water treatment report to the Subdivision Officer at Council for review and certification. The water treatment report shall contain full details of any treatment systems required to achieve and maintain compliance, in accordance with the standards. The consent holder shall then complete the following:

- (i) The consent holder shall install a treatment system that will treat the subdivision water supply to a compliant standard on an ongoing basis, in accordance with the Water Services Act 2021 and Water Services (Drinking Water Standards for New Zealand) Regulations 2022 and Aesthetic Values for Drinking Water Notice 2022 (or superseding legislation and standards and notices). The design shall be subject to review and certification by Council prior to installation and shall be implemented prior to the issue of section 224(c) certification for the subdivision.
OR
- (ii) A consent notice shall be registered on the relevant Records of Title for the lots, subject to the approval of Council. The consent notice shall require that, prior to occupation of the residential unit an individual water treatment system shall be installed in accordance with the findings and recommendations contained within the water treatment report submitted for the RM120677 subdivision consent. The final

wording of the consent notice shall be reviewed and approved by Council's solicitors prior to registration.

Ongoing Conditions/Consent Notices

35. The following conditions of the consent shall be complied with in perpetuity and shall be registered on the Titles of Lots 1 & 2 by way of Consent Notice pursuant to s.221 of the Act.

- a. All future buildings shall be contained within the Building Platform as shown as Covenant Area X as shown on Land Transfer Plan XXXXX.
- b. All external colours and materials for all buildings and structures within the consented building platforms shall be of a dark grey, brown or green with a colour light reflectivity value (LRV) of between 7% and 20%, or a green 'living roof' planted with vegetation that blends into the surrounding landscape. Roof colours shall have matt finish. Polycarbonate panels or similar shall not be used on any roof to avoid contrasting banding effects on rooflines. Clear skylights may be used but shall not exceed 5% of the total roof area. All external materials and colours for any future building or structure shall be submitted to council for certification prior to construction.
- c. Eaves or recesses above all glazed areas shall extend no less than 1m beyond glazing surfaces on all lake facing sides of the building to reduce the effect of glare.
- d. The maximum height for all buildings and structures within the consented building platform shall be 4.5m above a finished ground level of 375masl within Lot 1 and Lot 2.
- e. No chimneys or any other roof attachments shall exceed the height control by more than 1.2m and shall be no wider than 1m in any direction. All attachments and structures on the roof including but not limited to satellite dishes, weathervanes, aerals, etc. shall be coloured to match the roof colour. Solar panels to be ground based or located as not to be visible from beyond the site.
- f. All domestic landscaping and structures including but not limited to clotheslines, outdoor seating areas, water tanks, external lighting, parking areas, caravans, boats, swimming pools, tennis courts, pergolas, sheds and amenity gardens and lawns shall be confined to the domestic curtilage area as shown on the certified Landscape Mitigation Planting Plan (LMPP).
- g. All external effluent / waste water treatment and dispersal fields shall not be located with areas of native plant regeneration or areas of planting as shown in the certified ecological management plan and Landscape Mitigation Planting Plan.
- h. All water tanks shall be of dark recessive grey, brown or grey colour with a light reflectivity value of between 7% and 25%, and shall be located within the domestic curtilage area only.
- i. Lots 1 and 2 shall be kept free of all woody exotic weeds including buddleia, gorse, old mans beard, blackberry, hemlock, elderberry, sycamore and wilding conifer species, but excluding broom.
- j. All eucalyptus trees identified on the certified LMPP may be removed once C1 planting has reached an average height of 4m. If any existing eucalyptus trees dies or becomes diseased it may be removed but must be replanted with a cluster of no less than 12 Mountain Beech trees at 1.5m spacings and at a grade of no less than 1.2m in height and PB3.
- k. All lot and curtilage boundary fences and internal fences outside the domestic curtilage area are to be standard farming post and wire (and/or wire mesh) fences and includes deer fencing;
- l. All vehicle gateways are not to be visually obtrusive (monumental) and shall be consistent with traditional farm gateways. Gates and gate supports shall be of timber or metal only and not to exceed 1.4m in height. Lighting shall not be installed at gateways.
- m. Access drives up to the domestic curtilage area shall be a gravel of a local grey coloured stone such as schist and exclude concrete kerb and channels.
- n. All lot and curtilage area boundaries shall only be fenced with a standard post and wire fence (including rabbit proof fencing), or deer fencing in keeping with traditional farm fencing.
- o. All exterior lighting shall be located within the domestic curtilage area only and shall be down lighting only. Lighting not attached to buildings shall not exceed 1m above ground

level, where attached to a building where it shall not exceed 3m above ground level. There shall be no light spill beyond the curtilage area. Lighting shall not be used to highlight buildings, structures or feature landscape elements such as trees that are visible beyond the site.

- p. All planting as shown on the certified landscape plan shall be maintained to ensure healthy and natural growth, and to support natural regeneration of native vegetation and to sustain a closed canopy once established. Planting shall be maintained in its natural state and form and shall not be trimmed or modified in any manner. If any tree or plant shall die it shall be replaced as per the plan within 12 months. Consented shrub planting (excludes trees) within the 30m fire safety setback to the building platform may be thinned once established after three years to maintain spacings between plants of no greater than twice the height of the plant for fire safety.
- q. All mitigation earth mounds to the west of the building platforms (1.2m height above the building platform ground level) must be retained as per the certified LMMP and must not be altered or modified in any manner.
- r. All native vegetation within areas A, B, C, E and F as shown on the LMMP must be retained and the natural regeneration of native forest cover supported as per the certified ecological plan. Regenerating native vegetation areas shall be kept free of exotic weeds and no structures or earthworks are to be implemented or carried out within such areas. Vegetation within the 20m fire safety setback areas and within 4m of the access drive as shown on the LMMP may however be trimmed, to maintain a 4m gap between tree canopies and trees crown lifted to no more than 3m above ground and for fire safety purposes, or removed if species are highly flammable but must be replaced within 6 months with a low to low moderate flammability native species of similar mature height and form and planted at a grade of no less than 1.5m height.
- s. Lineal planting is not permitted alongside any lot or curtilage area boundary, or alongside the access drive.
- t. All planting within the property shall be indigenous species only except within the domestic curtilage area and for those areas where exotic pastoral grasses are required for soil erosion. Planting of exotic species within the domestic curtilage area shall be limited to those species with mature height no greater than 4m and shall exclude highly ornamental brightly coloured species and any weed or wilding species.
- u. Any existing trees that are of the following wilding species (*Pinus contorta*, *P. nigra*, *P. sylvestris*, *P. pinaster*, *P. radiata*, *Larix decidua*, *Psuedotsuga menziesii*, *Acer pseudoplatanus*, *Crataegus monogyna*) or problematic species such as elderberry, or birch are not protected by the approved landscape plan and may be removed at any time.
- v. The access drive from the State Highway 6 boundary through to the boundary of the domestic curtilage area around the consented building platform shall not exceed 3.5m in width and be of a standard gravel farm access construction and exclude the use of any concrete kerbs or channels. External lighting and avenue planting or any lineal formal elements such as pillars shall not be permitted anywhere along the access drive to ensure the natural and pastoral character of the landscape is retained. The gateway onto SH6 must be standard rural farm gate (steel or timber) no higher than 1.4m, with timber post and rail or timber post and wire up to the gate.
- w. The property is not to be accessible to grazing animals or used for grazing purposes, to ensure protection of regenerating native vegetation.
- x. The overland flow water cut off drains installed (east) of the building platforms at time of subdivision RM240583 and required under the Geosolve Report titled '*Geological Hazard and Geotechnical assessment Lumberbox Quarry, SH6, Queenstown*' (GeoSolve Ref: 160216 dated 2nd June 2017) require on-going maintenance by the owners of Lots 1 & 2 to ensure that they continue to capture overland water flows up to the 1 in 100 year rainfall event and to ensure there is no inundation of any buildable areas within the lots.
- y. At the time a residential unit is erected on the lot, the owner for the time being shall engage a suitably qualified professional as defined in Section 1.7 of QLDC's Land Development and Subdivision Code of Practice to design a stormwater disposal system that is to provide stormwater disposal from all impervious areas within the site. The proposed Stormwater system shall be subject to the review of the Principal Resource Management Engineer at Council prior to implementation and shall be installed prior to occupation of the dwelling.

- z. At the time a residential unit is erected on the lot, the owner for the time being shall engage a suitably experienced person as defined in sections 3.3 & 3.4 of AS/NZS 1547:2012 to design an onsite effluent disposal system in compliance with AS/NZS 1547:2012. The design shall take into account the site and soils investigation report and recommendations by Southern Monitoring Services, dated 29th April 2016. The proposed wastewater system shall be subject to Council review and acceptance prior to implementation and shall be installed prior to occupation of the dwelling.
- aa. If required under condition 19(s) at the time that a residential unit is erected on the lot, the owner for the time being is to treat the domestic water supply in accordance with the findings and recommendations contained within the water treatment report submitted at time of 224c for the RM240583 subdivision consent.
- bb. At the time a residential unit is erected on the lot, domestic water and fire fighting storage is to be provided. A minimum of 45,000 litres shall be maintained at all times as a static fire fighting reserve within a 55,000 litre tank. Alternatively, a 7,000 litre fire fighting reserve is to be provided for each dwelling in association with a domestic sprinkler system installed to an approved standard. A fire fighting connection in accordance with Appendix B – SNZ PAS 4509:2008 (or superseding standard) is to be located no further than 90 metres, but no closer than 6 metres, from any proposed building on the site. Where pressure at the connection point/coupling is less than 100kPa (a suction source - see Appendix B, SNZ PAS 4509:2008 section B2), a 100mm Suction Coupling (Female) complying with NZS 4505, is to be provided. Where pressure at the connection point/coupling is greater than 100kPa (a flooded source - see Appendix B, SNZ PAS 4509:2008 section B3), a 70mm Instantaneous Coupling (Female) complying with NZS 4505, is to be provided. Flooded and suction sources must be capable of providing a flow rate of 25 litres/sec at the connection point/coupling. The reserve capacities and flow rates stipulated above are relevant only for single family dwellings. In the event that the proposed dwellings provide for more than single family occupation then the consent holder should consult with the NZFS as larger capacities and flow rates may be required.

The FENZ connection point/coupling must be located so that it is not compromised in the event of a fire (more than 6m from a building)

The connection point/coupling shall have a hardstand area adjacent to it (within 5m) that is suitable for parking a fire service appliance. The hardstand area shall be located in the centre of a clear working space with a minimum width of 4.5 metres. Pavements or roadways providing access to the hardstand area must have a minimum formed width as required by QLDC's standards for rural roads (as per QLDC's Land Development and Subdivision Code of Practice). The roadway shall be trafficable in all weathers and be capable of withstanding an axle load of 8.2 tonnes or have a load bearing capacity of no less than the public roadway serving the property, whichever is the lower. Access shall be maintained at all times to the hardstand area.

Underground tanks or tanks that are partially buried (provided the top of the tank is no more than 1 metre above ground) may be accessed by an opening in the top of the tank whereby couplings are not required. A hardstand area adjacent to the tank is required in order to allow a fire service appliance to park on it and access to the hardstand area must be provided as above.

The FENZ connection point/coupling/fire hydrant/tank must be located so that it is clearly visible and/or provided with appropriate signage to enable connection of a fire appliance.

Fire fighting water supply may be provided by means other than the above if the written approval of the Fire and Emergency New Zealand Fire Risk Management Officer is obtained for the proposed method. The fire fighting water supply tank and/or the sprinkler system shall be installed prior to the occupation of the building.

Note: Fire and Emergency New Zealand considers that often the best method to achieve compliance with SNZ PAS 4509:2008 is through the installation of a home sprinkler system in accordance with Fire Systems for Houses SNZ 4517:2010, in each new residential unit. Given that the proposed residential unit is over 10km from the nearest FENZ Fire Station the

*response times of the New Zealand **Volunteer** Fire Brigade in an emergency situation may be constrained. It is strongly encouraged that a home sprinkler system be installed in the new residential unit.*

- cc. During development if no hardwired telecommunication connection has been provided to Lot 1 and 2 any telecommunication reticulation that is subsequently installed / utilised shall be at the cost of the lot owner for time being and protected with any necessary easements if relevant.

21. This subdivision may be staged. For the purposes of issuing approvals under Sections 223 and 224(c) of the Resource Management Act 1991, the conditions of this consent shall be applied only to the extent that they are relevant to each particular stage proposed. This consent may be progressed in the following stages:

Stage 1: Lot 3 and Balance Lot (future Stage 2 Lots 1 & 2) – this shall include the completion and implementation of all engineering access, service and geotechnical works in RM200827 for the two building platforms, including the creation of necessary easements for access and reticulated water services.

Stage 2: Lot 1 and 2

The stages set out above shall be progressed in order or combined, providing all necessary subdivision works (such as servicing, provision of formed legal access and other works required to satisfy conditions of this consent), are completed for each stage, prior to certification being issued as necessary under Sections 223 and 224(c) of the Resource Management Act 1991. Any balance lots created shall either be serviced to Council's standards or held together in one title with a serviced lot.

Advice Note:

1. This consent triggers a requirement for Development Contributions, please see the attached information sheet for more details on when a development contribution is triggered and when it is payable. For further information please contact the DCN Officer at Council.
2. The consent holder is advised to obtain any necessary consents from the New Zealand Transport Agency (NZTA) for works within the State Highway legal reserve. This specifically relates to works associated with upgrades to or removal of identified NZTA vehicle crossings to the development.
3. The consent holder is advised of their obligations to register the subdivision water supply with Taumata Arowai and compile and maintain a Drinking Water Safety Plan (DWSP) that complies with the legislative requirements and lodge a copy of the plan with Taumata Arowai or work under Acceptable Solutions as determined by the Water Service Act 2021.

Landuse Conditions

General Conditions

1. That the development must be undertaken/carried out in accordance with the plans:
 - Clark Fortune McDonald & Associates – *D & J Jardine*: Lots 1 – 3 being a Proposed Subdivision of PT Lot 1 DP 26261: Proposed Earthworks – Sheet 02_02 REV D dated 04 August 2020

stamped as approved on 11 March 2025.

and the application as submitted, with the exception of the amendments required by the following conditions of consent.

2. This consent shall not be exercised and no work or activity associated with it may be commenced or continued until the following charges have been paid in full: all charges fixed in accordance with section 36(1) of the Resource Management Act 1991 and any finalised, additional charges under section 36(3) of the Act.
3. The consent holder is liable for costs associated with the monitoring of this resource consent under Section 35 of the Resource Management Act 1991.
4. Prior to undertaking any earthworks, the consent holder shall provide to the Council Subdivision Planner for certification by a suitably qualified expert, a *“Remediation Action Plan and Site Management Plan”* for the removal of the lead contaminated soil on Lot 2. The plan shall be prepared by a Suitably Qualified and Experienced Practitioner (SQEP) under the National Environmental Standard for Assessing and Managing Contaminants in Soil to Protect Human Health, and shall detail the procedures for remediating the site, including the safe soil removal.
5. At least 15 working days prior to any works commencing on site the Consent Holder shall submit an updated Environmental Management Plan (EMP) to Council’s Monitoring and Enforcement Team for review and acceptance . This document shall be generally in accordance with the approved Environmental Management Plan and must be prepared by a Suitably Qualified and Experienced Person. The EMP shall be in accordance with the principles and requirements of the *Queenstown Lakes District Council’s Guidelines for Environmental Management Plans* and specifically shall address the following environmental elements as specified in the guidelines:
 - a) Administrative Requirements
 - (i) Weekly site inspections
 - (ii) Monthly environmental reporting
 - (iii) Monthly monitoring by a Suitably Qualified and Experienced Person
 - (iv) Notification and management of environmental incidents
 - (v) Records and registers
 - (vi) Environmental roles and responsibilities of personnel (including nomination of Principal Contractor)
 - (vii) Site induction
 - b) Operational Requirements
 - (i) Erosion and sedimentation (including Erosion and Sediment Control Plan)
 - (ii) Water quality
 - (iii) Dust
 - (iv) Cultural heritage
 - (v) Noise
 - (vi) Vibration
 - (vii) Contaminated sites
 - (viii) Indigenous vegetation clearance
 - (ix) Chemical and fuel management

(x) Waste management

6. Prior to ground-disturbing activities on the initial stage of works or any subsequent new stage of works, the Consent Holder shall engage an Appropriately Qualified Person to prepare and submit an Erosion and Sediment Control Plan (ESCP) to Council's Monitoring and Enforcement Team for review and acceptance. This plan shall be a sub-plan of the overarching EMP and must be prepared in accordance with the requirements outlined on pages 13 – 18 in *Queenstown Lakes District Council's Guidelines for Environmental Management Plans*. These plans must be updated when:
 - a) The construction program moves from one Stage to another; or
 - b) Any significant changes have been made to the construction methodology since the original plan was accepted for that Stage; or
 - c) There has been an Environmental Incident and investigations have found that the management measures are inadequate.
7. Prior to commencing ground-disturbing activities, the Consent Holder shall nominate an Environmental Representative for the works program in accordance with requirements outlined on pages 9 and 10 of the *Queenstown Lakes District Council's Guidelines for Environmental Management Plans*.
8. Prior to commencing ground disturbing activities, the Consent Holder shall ensure that all staff (including all sub-contractors) involved in, or supervising, works onsite have attended an Environmental Site Induction in accordance with the requirements on page 8 of the *Queenstown Lakes District Council's Guidelines for Environmental Management Plans*.

During construction:

9. Prior to bulk earthworks operations (and vegetation clearance) for the initial stage or any subsequent new stage of works, the Consent Holder must install erosion and sediment controls in accordance with the ESCP as well as provide As-built documentation for these controls by Suitably Qualified and Experienced Person . It is noted that earthworks required to construct environmental management controls are allowed to commence once Council has provided notice that has been met.
10. All works shall be undertaken in accordance with the most current version of the EMP as accepted as suitable by Council.
11. The EMP shall be accessible on site at all times during work under this consent.
12. The Consent Holder shall establish and implement document version control. Council shall be provided with an electronic copy of the most current and complete version of the EMP at all times.
13. The Consent Holder shall develop and document a process of periodically reviewing the EMP as outlined on page 6 of the *Queenstown Lakes District Council's Guidelines for Environmental Management Plans*. No ground disturbing activities shall commence in any subsequent stage of development until an EMP has been submitted and deemed suitable by Council 's Monitoring and Enforcement Team.
14. The Consent Holder shall undertake and document weekly and Pre and Post-Rain Event site inspections as outlined on pages 10 and 11 of the *Queenstown Lakes District Council's Guidelines for Environmental Management Plans*.
15. A SQEP shall monitor the site monthly to ensure that the site is complying with its EMP, identify any new environmental risks arising that could cause an environmental effect and suggest alternative solutions that will result in more effective and efficient management. This must include a specific audit

by the SQEP of the effectiveness of the ESCP. The outcome of these inspections should be included in the Monthly Environmental Report referred to Condition 19 below.

16. The Consent Holder shall complete and submit exception reporting to QLDC in the form of a monthly environmental report. The monthly environmental report shall be submitted to QLDC's Regulatory Department within five (5) working days of the end of each month.
17. In accordance with page 9 of the *Queenstown Lakes District Council's Guidelines for Environmental Management Plans*, where any Environmental Incident where the EMP has failed leading to any adverse environmental effects offsite occurs the Consent Holder shall:
 - c) Report to QLDC details of any Environmental Incident within 12 hours of becoming aware of the incident.
 - d) Provide an Environmental Incident Report to QLDC within 10 working days of the incident occurring as per the requirements outlined in Section 3.3.1 of *Queenstown Lakes District Council's Guidelines for Environmental Management Plans*.
18. Environmental records are to be collated onsite and shall be made available to QLDC upon request; immediately if the request is made by a QLDC official onsite and within 24 hours if requested by a QLDC officer offsite. Records and registers to be managed onsite shall be in accordance with the requirements outlined on page 14 of the *Queenstown Lakes District Council's Guidelines for Environmental Management Plans*.
19. Any Discharge (refer definition in the *Queenstown Lakes District Council's Guidelines for Environmental Management Plans*) that leaves the site shall comply with the Water Quality Discharge Criteria outlined on page 19 of the *Guideline*., with the exception of Total Suspended Solids which should be at a concentration of no more than 25mg/L.

APPENDIX 2 – APPLICANTS AEE

Remarkables Station Limited
Remarkable Station National Trust Ltd

Lumberbox Quarry, Kingston Road



Variation to RM240583

April 2026

Prepared by: Karen Page

CLARK FORTUNE MCDONALD & ASSOCIATES
REGISTERED LAND SURVEYORS, LAND DEVELOPMENT & PLANNING CONSULTANTS

1.0 A DETAILED DESCRIPTION OF THE PROPOSAL:

1.1 Site Description

The subject site is an irregular shaped lot legally described as Part Lot 1 and Lot 2 Deposited Plan 26261 (measuring 656.9388 ha and 205.9800 ha respectively). The Certificates of Title is contained in Attachment A to this application (It is noted that the development site does not include Lot 2).

The area subject to this development includes 9.62ha and is part of the rural property that makes up the larger farm identified as Remarkables Station that is now in the ownership of Remarkables Station National Trust Ltd. The Station consists of an area in excess of 800 ha and is currently held in pasture for grazing. The Remarkables Mountain range borders the farm along its eastern boundary. The area of land subject to this proposal lies towards the Station's southern boundary and borders SH6 along its western boundary, a conservation zone to its south west, with the balance land of the Remarkables Station to its east and north, see Figure 1 below for detail:



Figure 1: Subject Site

The 9.62 ha site is currently fenced off from the larger farm operation. As a result, in the absence of any stock and grazing in this area much of the site supports regenerating and established indigenous Kohuhu forest as well as large areas of exotic vegetation and weeds, as discussed in more detail below. In the middle of the site large cuts and old quarry

terraces remained exposed supporting little established vegetation. No built development currently exists on site and the site has not been used as a gravel quarry in excess of 20 years. Access to this area of the Station is via an informal driveway located north of the proposed subdivision on the balance Lot 3, see Appendix B for detail.

Consent was granted April 2018 RM170483 for a two-lot subdivision which saw approval for a 2.61 ha and 7.01 ha lots in the vicinity of the old gravel quarry pit, see Appendix C for detail.

The development was approved subject to a number of conditions requiring additional ecological and landscape reporting prior to 224c certification.

A variation to the above consent was approved under RM200628 to amend the internal lot boundary from that shown above in figure 2. This variation increased the size of Lot 1 to 4.7ha.

A further variation was sought by the Applicant to provide for a staging condition so the balance allotment could be subdivided from proposed Lots 1 and 2.

RM240583 was subsequently approved to replace RM170483 that expired April 2023. This consent was a replica of the consent granted under RM170483 and subsequent variations.

1.2 The Proposal

Consent is sought to vary Condition 34 f of RM240583 to provide flexibility in respect to the provision of telecommunications. The existing condition reads as follows:

Condition 34 f

- f) Written confirmation shall be provided from the telecommunications network supplier responsible for the area, that provision of underground telephone services has been made available to the building platform on Lots 1 & 2 and that all the network supplier's requirements for making such means of supply available have been met.

It is proposed to amend Condition **34 f** to provide for an alternative telecommunications supply as follows:

- f) Written confirmation shall be provided from the telecommunications network supplier responsible for the area, that provision of underground telephone services has been made available to the building platform on Lots 1 & 2 and that all the network supplier's requirements for making such means of supply available have been met.

Or

The consent holder shall provide written evidence of an alternative future telecommunications supply to Lots 1 and 2.

The following Consent Notice condition is also proposed:

During development if no hardwired telecommunication connection has been provided to Lot 1 and 2 any telecommunication reticulation that is subsequently installed / utilised shall be at the cost of the lot owner for time being and protected with any necessary easements if relevant.

A variation pursuant to Section 127 is therefore sought to vary Condition 34 f of RM240583 to provide for the above changes to the condition set, as outlined above.

No additional changes are proposed to this consent.

2.0 Queenstown Lakes District Plan

Section 127 of the Resource Management Act provides for the holder of a resource consent to apply for a change of a condition of the consent. Section 127 states:

- (3) *Sections 88-121 apply, with all necessary modifications, as if –*
 - (a) *the application were an application for a resource consent for a discretionary activity; and*
 - (b) *the references to a resource consent and to the activity were references only to the change or cancellation of a condition and the effects of the change or cancellation respectively.*
- (4) *For the purposes of determining who is adversely affected by the change or cancellation, the local authority must consider, in particular, every person who –*
 - (a) *made a submission on the original application; and*
 - (b) *may be affected by the change or cancellation.*

Consent is sought to vary Condition 34 f for RM240583 as discussed above. The Consent Notice is proposed to add to those listed in Condition 35.

In accordance with the above the proposed variation is for a Discretionary Activity.

3.0 ASSESSMENT OF THE ACTIVITY'S EFFECT ON THE ENVIRONMENT

The proposed change will not incur any additional non compliances and will continue to provide adequate services to the building platforms and new lots. The site does not have ready access to existing fibre of copper infrastructure in the road boundary along the State Highway. Estimates to provide for this are in excess of \$100k. As a result, the Applicant seeks to amend the condition to provide flexibility in respect to this service potentially enabling the titles to be issued without connection to telecommunications. It is anticipated that any future owner will utilise Starlink for telecommunication services to the site. It is considered that the amended conditions will provide flexibility in respect to an appropriate service. The Consent Notice will ensure that any prospective owner is aware of this arrangement.

For the above reasons, it is considered that the variation will have negligible adverse effects on this environment, over and above those effects approved under RM240583.

4.0 DISTRICT PLAN: OBJECTIVES AND POLICIES ASSESSMENT

The relevant Objectives and Policies of the Queenstown Lakes Proposed District Plan are considered below:

PROPOSED DISTRICT PLAN

Rural Zone

Objective- A range of land uses including farming and established activities are enabled while protecting maintaining and enhancing landscape ecosystem services nature conservation and rural amenity values.

21.2.1.3 Require buildings to be set back a minimum distance from internal boundaries and road boundaries in order to mitigate potential adverse effects on landscape character visual amenity outlook from neighbouring properties and to avoid adverse effects on established and anticipated activities.

21.2.1.6 Avoid adverse cumulative impacts on ecosystem services and nature conservation values.

Comment

The subject site is unique given its location and past land use history. The underlying subdivision enabled the site to be utilised for residential purposes while contributing significantly to the ecological values of this area. The proposed variation will not alter the landscape character of the site, or curtilage areas and servicing. It will continue to ensure the overall development protects and enhances this natural environment.

Objective 21.2.2 The life supporting capacity of soils is sustained.

Policies 21.2.2.1 Allow for the establishment of a range of activities that utilise the soil resource in a sustainable manner

21.2.2.2. Maintain the productive potential and soil resource of Rural Zoned land and encourage land management practices and activities that benefit soil and vegetation cover.

21.2.2.3 Protect the soil resource by controlling activities including earthworks, indigenous vegetation clearance and prohibit the planting and establishment of identified wilding exotic trees with the potential to spread and naturalise.

Comment

The proposal will not compromise any fertile soils or alter the proposed/ consented land use activity for this site. It will continue to ensure a vegetation cover in line with that consented under RM170483 and ensuring its on-going maintenance. No exotic species are proposed to be planted on site.

For these reasons, the proposal is considered consistent with the relevant objective and policies outlined above.

Subdivision

Objective 27.2.5

Infrastructure services are provided to new subdivisions and developments.

Policies 27.5.1-27.2.5.18

Require infrastructure and services are provided to lots and developments in anticipation of the likely effects of land use activities on those lots and within overall developments.

Ensure safe and efficient pedestrian, cycle and vehicular access is provided to all lots created by subdivision and to all developments.

Ensure water supplies are of a sufficient capacity, including fire-fighting requirements, and of a potable standard, for the anticipated land uses on each lot or development.

Treating and disposing of sewage is provided for in a manner that is consistent with maintaining public health and avoids or mitigates adverse effects on the environment.

Ensure appropriate sewage treatment and disposal by having regard to:

- The method of sewage treatment and disposal;*
- The location, capacity, construction and environmental effects of the proposed sewage treatment and disposal system.*

Ensure appropriate stormwater design and management by having regard to:

- Recognise and encourage viable alternative design for stormwater management that minimises run-off and recognises stormwater as a resource through re-use in open space and landscape areas;*
- The capacity of existing and proposed stormwater systems;*
- The method, design and construction of the stormwater collection, reticulation and disposal systems, including connections to public reticulated stormwater systems;*
- The location, scale and construction of stormwater infrastructure*

Ensure that services, shared access and public access is identified and managed by the appropriate easement provisions.

Ensure that easements are of an appropriate size, location and length for the intended use.

Comment

The proposal will not alter any consented servicing other than that required for telecommunication purposes. As outlined above the proposed conditions will continue to ensure that a suitable telecommunication service is provided for in respect to the two proposed allotments. Furthermore, the proposed consent notice will clearly outline to any future owner the requirements in respect to this service.

Overall, the proposal is considered to be in accordance with the relevant objectives and policies of the Proposed District Plan.

5.0 AFFECTED PARTIES

Under Section 127 (4) there is a requirement to consider all those parties who submitted on RM170483 and any additional parties who may be adversely affected by the proposed change. RM170483 was publicly notified on 26 July 2017 and no submissions were received. Further to this, for reasons outlined above, no parties are considered affected by the minor change to the conditions.

6.0 RESOURCE MANAGEMENT ACT 1991: PART 2

The proposal aligns with the Rural Zone requirements as discussed in detail above. Future development will promote sustainable management of natural and physical resources within the site, whilst ensuring that social, economic, and cultural well-being is provided for. The proposal will avoid, remedy, and mitigate adverse effects of activities on the environment.

Overall, the proposal is in keeping with the purpose and principles of the RMA.

7.0 SUMMARY

Subject to Part 2 of the Act, the application has been considered in terms of applicable matters within the context of Section 104 of the Act. Overall, it is considered that the proposal will have no more than minor adverse effects on the environment, is consistent with the relevant Objective and Policies of the Proposed District Plan and the purpose and principles of the Act. Consent can therefore be granted subject to the appropriate imposition of conditions of consent.

Prepared by Karen Page

CLARK FORTUNE MCDONALD & ASSOCIATES

April 2026

APPENDIX A - Certificates of Title

APPENDIX B – RM240583